

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

ORLEANS INTERNATIONAL, INC., *Complainant*

v.

HAPAG LLOYD AG, *Respondent*.

DOCKET NO. 26-04

Served: July 16, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

SCHEDULING ORDER

On July 13, 2026, the parties filed a Joint Status Report (“JSR”) and proposed discovery and briefing schedule. In the JSR, the parties indicate that they made initial disclosures on July 6, 2026, and been in contact with CADRS. (JSR, at 1-2). Regarding discovery, the JSR contemplates completion of all discovery, including expert discovery, no later than February 11, 2027. (JSR, at 2-4). Although the parties acknowledge this proposal is for longer than the 150 days typically permitted under 46 C.F.R. § 502.141(g), the parties argue that the proposed schedule is realistic in light of the complexities of discovery. (JSR, at 2-3). The parties also indicate that they do not anticipate needing more than the number of depositions and interrogatories generally permitted under the Commission’s Rules. (JSR, at 1).

To make the discovery process more efficient, the parties are encouraged to agree to limitations on discovery and stipulations of facts. The parties are also encouraged to review the Initial Order for instructions related to confidential information. For example, parties may not mark entire depositions as confidential, so they should ask questions that may require confidential responses together, typically at the end of the deposition.

Under normal circumstances, cases such as these are resolved following briefing, and the parties have proposed a briefing schedule. I have set forth the agreed-upon briefing schedule below. Complainant requested that a hearing be held in the matter. (*See Verified Amended Complaint*, at 25). Pursuant to 46 C.F.R. § 502.62(a)(5), “[t]he presiding officer will determine whether an oral hearing is necessary.” At this point in the proceeding, it is not clear that there is reason to conduct an oral hearing – accordingly, the Complainant’s request is **DENIED WITHOUT PREJUDICE**.

Although the Commission’s Rules presuppose that discovery will take 150 days, I appreciate that the allegations in this case may potentially result in fact-intensive discovery. Accordingly, the parties are hereby **ORDERED** to follow this schedule:

July 21, 2026	Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information and interrogatories
August 20, 2026	Parties to serve objections and initial responses to initial RFPs and interrogatories
September 16, 2026	Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly) ¹
October 16, 2026	Substantial Completion of productions of documents and ESI in response to initial RFPs
November 30, 2026	Complete depositions of fact witnesses
December 23, 2026	Last day to serve interrogatories, requests for admission, and RFPs
December 23, 2026	Disclosure of initial expert reports, if any
January 20, 2027	Disclosure of rebuttal expert reports, if any
February 11, 2027	Complete expert depositions
February 11, 2027	Discovery closes
March 16, 2027	Complainant’s initial brief, proposed findings of fact, and appendix
April 13, 2027	Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
May 11, 2027	Complainant’s reply and responses to proposed findings of fact

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” (*Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985))). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” (*Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983)). The authority of courts to control their dockets is well settled. (*Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998)).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including the requirements for submitting confidential information.

Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with

¹ The parties are strongly encouraged to resolve discovery disputes amongst themselves.

opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
Date: 2026.07.16
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Richard Ambrow
Administrative Law Judge